

# HOUSE . . . . . No. 5148

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## The Commonwealth of Massachusetts

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HOUSE OF REPRESENTATIVES, February 26, 2026.

The committee on Environment and Natural Resources, to whom was referred the petition (accompanied by bill, House, No. 4040) of Michelle L. Badger, Vanna Howard and Lindsay N. Sabadosa relative to the discharge of spent fuel pool water, reports recommending that the accompanying bill (House, No. 5148) ought to pass [Representative Gaskey of Carver dissents].

For the committee,

CHRISTINE P. BARBER.

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## The Commonwealth of Massachusetts

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In the One Hundred and Ninety-Fourth General Court  
(2025-2026)  
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An Act preventing the discharge of radioactive materials.

*Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:*

1           (a) The department of environmental protection in consultation with the department of  
2 public health shall study, examine and report on the potential environmental and economic  
3 impacts caused by the discharge of spent fuel pool water, including discharge by any means or  
4 methods that increases the rate of evaporation of any materials created as a waste product of  
5 nuclear energy from spent fuel pools including, but not limited to, processed water or any other  
6 liquid with elevated levels of radioactivity including, but not limited to, tritium or boron  
7 associated with the decommissioning of the any nuclear power plant.

8           (b) The study shall include, but not be limited to: (i) examining and investigating the  
9 potential environmental and economic impacts of discharge, including discharge by any means  
10 or methods that increases the rate of evaporation; (ii) analyzing the impacts to consumer  
11 perception of the discharge of spent fuel wastewater on the fishing, aquaculture, tourism,  
12 restaurant industries and other sectors deemed appropriate by the department of environmental  
13 protection in consultation with the department of public health; (iii) undertaking regular  
14 monitoring of the land, air and water to determine the pollution levels created by discharge,

15 including discharge by any means or methods that increase the rate of evaporation; and (iv)  
16 making recommendations on measures to mitigate or avoid potential negative impacts on such  
17 industries.

18 (c) The department of environmental protection shall submit a report detailing the results  
19 of the study, along with recommendations and any proposed standards and legislation necessary  
20 to carry out its recommendations, to the: (i) the joint committee on public health; (ii) the joint  
21 committee on environmental and natural resources; and (iii) clerks of the house of  
22 representatives and senate not later than December 31, 2026.